

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
DEQUAN MILLER,

Plaintiff,

-against-

THE CITY OF NEW YORK,
POLICE OFFICER MARIAMA CEESAYDefendants.
-----X**SUMMONS**

Index No.:

Plaintiff Designates Bronx County
As the Place of Trial

Basis of Venue: Place of Occurrence

To the above-names Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within twenty (20) days after the service of this summons, exclusive of the day of service (or within 30 days after service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Defendants' addresses:

CITY OF NEW YORK
100 Church Street
New York, NY 10007MARIAMA CEESAY
NYPD 49th Precinct
2121 Eastchester Rd.
Bronx, NY 10461Dated: New York, New York
February 19, 2024Cody Warner, P.C.
Counsel for Plaintiff
11 Broadway
Suite 615
New York, NY 10004
212-627-3184By: Cody Warner
CODY WARNER, ESQ

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X	:	
DEQUAN MILLER,	:	
	:	
	:	VERIFIED COMPLAINT
Plaintiff,	:	
	:	
-against-	:	Index No.:
	:	
THE CITY OF NEWYORK,	:	
POLICE OFFICER MARIAMA CEESAY	:	
	:	
	:	
Defendants.	:	
-----X	:	

Plaintiff, DEQUAN MILLER, by his attorney, CODY WARNER, alleges as follows:

PRELIMINARY STATEMENT

1. This action arises from the Defendants’ unlawful arrest of Dequan Miller (“Plaintiff”) on August 7, 2023, for Trespass in front of his home at 1219 Adee Avenue, Apt. 1F in Bronx County, New York. Plaintiff asserts constitutional claims pursuant to 42 U.S.C. § 1983 and analogous claims under New York state law. Plaintiff seeks compensatory and punitive damages, costs, disbursements, and attorney’s fees pursuant to applicable state law.

VENUE AND JURISDICTION

2. Venue is proper in Bronx County Supreme Court pursuant to CPLR § 503 because the acts complained of herein occurred in Bronx County, New York, and Plaintiff suffered damages that exceed the jurisdictional amount of all lower courts of the State of New York

3. This action was commenced within one year after the occurrence of the event upon which the claims are based.

JURY DEMAND

4. Plaintiff respectfully demands a trial by jury of all issues in this matter.

PARTIES

5. Plaintiff is a thirty-five-year-old man who resides in Bronx County, New York.

6. Defendant Ceesay was at the time of the incident an officer, employee, and agent of the New York City Police Department (“NYPD”), which is an agent of Defendant City.

7. Defendant Ceesay is sued in her individual and official capacities. At all times mentioned herein, Defendant Ceesay acted under the color of state law, in the capacity of an officer, employee, and agent of Defendant City.

8. Defendant City is a municipality created and authorized under the laws of New York State. It is authorized to maintain, direct, and to supervise the NYPD, which acts as its law enforcement agent and for which it is ultimately responsible.

STATEMENT OF FACTS

9. On August 7, 2023, Plaintiff stood in the hallway outside the door of his home at 1219 Adeo Avenue, Apt. 1F, Bronx, NY.

10. 1219 Adeo Avenue is part of Eastchester Gardens—public housing operated by the New York City Housing Authority.

11. Plaintiff had exited his home to get fresh air.

12. While outside of his apartment, NYPD officers approached Plaintiff and demanded his ID.

13. The NYPD officers who approached Plaintiff accused him of smoking and trespassing.

14. Plaintiff had not been smoking.

15. Plaintiff told the NYPD officers that he was not trespassing because he lived in Apartment 1F—the home he was standing in front of.

16. Plaintiff opened the door to his apartment to prove to the NYPD officers that he lived in Apartment 1F.

17. A neighbor who lived in Apartment 1C also told the NYPD officers that Plaintiff lived in Apartment 1F.

18. Approximately a dozen NYPD officers surrounded Plaintiff.

19. Defendant Ceesay arrested Plaintiff by placing him in handcuffs.

20. Plaintiff had committed no offense.

21. Defendant Ceesay escorted Plaintiff to the 49th Precinct.

22. Plaintiff was in custody for a couple of hours before he was released.

23. When he was released, Defendant Ceesay gave Plaintiff a Criminal Court Appearance Ticket that charged Plaintiff for committing Trespass (P.L. § 140.05) in front of his home.

24. The Criminal Court Appearance Ticket ordered Plaintiff to appear in Bronx Criminal Court on August 25, 2023.

25. On August 25, 2023, Bronx Criminal Court dismissed the accusatory instrument.

26. As a result of the foregoing, Plaintiff sustained, inter alia, loss of liberty, emotional distress, embarrassment, suffering humiliation, and deprivation of his constitutional rights.

CAUSES OF ACTION

First Claim

False Arrest Under 42 U.S.C. § 1983

27. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if fully stated therein.

28. Defendant Ceesay deprived Plaintiff of his rights afforded by the Fourth and Fourteenth Amendments to the U.S. Constitution by wrongfully arresting and detaining Plaintiff.

29. The wrongful and unlawful apprehension, arrest, detention, and imprisonment of Plaintiff was carried out without probable cause, without a warrant, and without privilege or consent.

Second Claim

False Arrest Under New York State Law

30. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully therein.

31. Defendant Ceesay caused Plaintiff to be arrested without probable cause.

32. Plaintiff was conscious of his confinement.

33. Plaintiff did not consent to his confinement.

34. Plaintiff's arrest was not otherwise privileged.

35. Defendant City, as the employer of Defendant Ceesay, is responsible for her wrongdoing under the doctrine of *respondeat superior*.

36. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

Third Claim

Negligent Screening, Hiring, and Retention Under New York State Law

37. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully therein.

38. Defendant City owed a duty of care to Plaintiff to adequately hire, retain, and supervise its employee Defendant Ceesay.

39. Defendant City breached that duty of care.

40. Defendant City placed Defendant Ceesay in a position where she could inflict foreseeable harm.

41. Defendant City knew or should have known Defendant Ceesay's propensity to engage in the unlawful conduct heretofore alleged in this Complaint.

42. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

Fourth Claim

Governmental Entity "Monell" Liability Under 42 U.S.C. § 1983 Against Defendant City

43. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if fully stated herein.

44. Defendant City maintained a policy, custom, or practice that caused Plaintiff to be deprived of his constitutional right to be free from illegal searches and seizures.

45. Defendant City's illegal practice is so consistent and widespread that it constitutes a custom or usage of which a supervising decision or policymaker must, or should, have been aware of.

46. Defendant City's supervisors, decision or policymakers failed to provide adequate training or supervision to subordinates to such an extent that it amounts to deliberate indifference to the rights of those who encounter Defendant City's employees.

47. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff respectfully requests the following relief jointly and severally against the Defendants:

- a. An order awarding compensatory damages for Plaintiff in an amount to be determined by a jury;
- b. An order awarding punitive damages in an amount to be determined by a jury;
- c. Reasonable attorney's fees and the costs and disbursements of this action; and
- d. Such other and further relief as this Court may deem appropriate.

DATED: New York, New York
February 19, 2024

Cody Warner, P.C.
Counsel for Plaintiff
11 Broadway
Suite 615
New York, NY 10004
212-627-3184

By: *Cody Warner*
Cody Warner, Esq.

ATTORNEY'S VERIFICATION

STATE OF NEW YORK)
COUNTY OF NEW YORK) ss:

I, **CODY WARNER**, an attorney admitted to practice in the courts of New York State, affirm that I am the principal attorney of the firm **CODY WARNER, P.C.**, counsel of record for Plaintiff in the within action. I have read the foregoing and know the contents thereof. The same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe them to be true. The reason this verification is made by me and not by Petitioner is because Petitioner resides outside the county where deponent maintains his office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: February 19, 2024
New York, NY

Cody Warner
Cody Warner, Esq.
Attorney for Plaintiff

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SUMMONS AND VERIFIED COMPLAINT

CODY WARNER, P.C.

By: Cody Warner
Attorney for Plaintiff
11 Broadway
Suite 615
New York, NY
Tel. 212-627-3184
